

Private and Confidential

20 March 2020

Mr Richard McLean
2 McCubbin Street
FOOTSCRAY, VIC 3011

By email only: rich@richmclean.com.au

Dear Mr McLean

Your Freedom of Information request

Thank-you for your response to our letter dated 17 March 2020, inviting you to revise the scope of your request for documents under the *Freedom of Information Act 1982* (Cth) (**FOI Act**). I am writing in response to your revised request dated 17 March 2020, received by the Australian Health Practitioner Regulation Agency (**Ahpra**) by email on this day.

Your request

Further to your email dated 17 March 2020, we confirm you are seeking access to the following:

- 1) *I request documentation to do with my case that allow the GP to edit my evidence.*
- 2) *I request the 'marked up' version you sent to 'The Board' for consideration, because in court it will show that the GP's 'marked up' version differs to what I provided. I remind you you are under investigation by Preya McKenzie from NHPOPC*
- 3) *Any emails or documents referring to this case shared by Gemma mainland, Ben Laycock, internal memos and anything mentioning this case I have a right to see.*
- 4) *I wish to see all emails pertaining to the case from Ball and Partners that suggest to give value to the recording is illegal.*
- 5) *I request anything to do with my case, emails or letters from Dr Whitaker or his Lawyer referring to the outcome of my case or mention my name*
- 6) *Emails internally from Gemma Mainland or Ben Iaming that mention my case.*
- 7) *I request the names of the people on the Australian medical Review board that decided my case.*
- 8) *I request any correspondence why this was not relayed to me via the mail or email*
- 9) *Specifically, I wish to gain evidence of what Ball & Partners submitted as evidence to the board, including re: the legalities of the recording, and the entirety of my patient records that were considered by AHPRA or The Australian Medical Board*
- 10) *I seek documents relating back to the time I commenced seeing Dr Whitaker six years ago.*
- 11) *I request any medical information about me that AHPRA holds over my lifetime."*

Australian Health Practitioner Regulation Agency | National Boards

GPO Box 9958 Melbourne VIC 3001 Ahpra.gov.au 1300 419 495

Ahpra and the National Boards regulate these registered health professions: Aboriginal and Torres Strait Islander health practice, Chinese medicine, chiropractic, dental, medical, medical radiation practice, midwifery, nursing, occupational therapy, optometry, osteopathy, paramedicine, pharmacy, physiotherapy, podiatry and psychology.

Charges

Agencies may decide that an applicant is liable to pay a charge in respect of a request for access to documents. These charges are set under the *Freedom of Information (Fees and Charges) Regulations 1982* (FOI Regulations) and are for search and retrieval of documents, decision making and provision of access (for example, copying and postage).

If Ahpra decides to charge, we will send you a preliminary assessment of the charges. We will do this as soon as possible after documents relevant to your request are identified.

Consultation with third parties

Where documents contain information about third parties, the FOI Act sometimes requires agencies to consult them before making a decision. This can be where information:

- originates with, or was received from an Australian State or Territory or an authority of that State or Territory
- originates with, or was received from a foreign government, an authority of a foreign government or an international organisation
- information concerns a person's business or commercial affairs, or the business, commercial or financial affairs of an organisation or undertaking, or
- is personal information about a person (including a deceased person).

The documents you seek contain information about third parties. Ahpra has determined that the FOI Act requires consultation with these third party individuals before making a decision.

Your name will be provided as part of the consultation so that respondent(s) can make informed decisions regarding their personal information. If you do not wish to have your name disclosed, please advise the National Information Release Unit immediately in writing or by email to foi@ahpra.gov.au. If you do not respond within 5 working days of this letter, we will proceed with the consultation on the basis that you agree to have your name disclosed to the respondent(s).

Section 15(6) of the FOI Act provides for an extension of 30 days to the statutory 30-day time limit for processing requests. As this date would fall on a Saturday, the FOI Act extends the time limit to the next working day. As such, the time limit for us to provide you with an access decision is **18 May 2020**.

If you have any questions, please contact us at foi@ahpra.gov.au.

Yours sincerely



FOI team

National Information Release Unit

Reference Number: FOI24135